

Dharmpal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 24 March 2023 · Writ-C No. 9476 of 2023 · **Writ disposed; fresh theft-recovery order to follow the Supply Code procedure.**

HEADNOTE

The Electricity Department withdrew the 10 March 2022 recovery notice for electricity-theft dues and issued a fresh notice fixing a hearing on objections. The writ was disposed of with liberty to pass a fresh order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Dharmpal petitioned the Allahabad High Court against a recovery notice dated 10 March 2022 issued by respondent no. 3, demanding dues alleged to arise from theft of electricity. The State of U.P. and two others were respondents. At the hearing, counsel for the Electricity Department told the Court that the impugned recovery had been withdrawn, that a fresh notice had been issued fixing the date and place for hearing the petitioner's objections, and that a fresh order would follow.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

theft-recovery fresh order

HOLDING

On the Electricity Department's statement that the 10 March 2022 theft-recovery notice had been withdrawn and a fresh notice issued for hearing objections, the writ was disposed of with liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG No numbered clause is cited; the order refers only to the procedure prescribed under the Code.

PRINCIPLE TAGS

fresh-order-strictly-per-supply-code-procedure Where the licensee withdraws a theft-recovery notice and undertakes to hear objections, the writ is disposed with liberty to pass the fresh order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ELECTRICITY-THEFT DUES WERE RECOVERABLE, AND IN WHAT AMOUNT

The impugned recovery was withdrawn; liability was left to a fresh order after hearing objections. ¶ 1